Ex Tempore

GRAPHITE PETROLEUM (PRIVATE) LIMITED
versus
BLESSING MUTSENGI
and
LAIZA DOBI
and
THE SHERIFF FOR ZIMBABWE

HIGH COURT OF ZIMBABWE
DEME J
HARARE, 9, 16, and 19 February 2026

Opposed Urgent Court application

R.T Mutero, for the applicant
S Kuchena, for the 1st & 2nd respondents
No appearance, for the 3rd Respondent.

DEME J: The Applicant is seeking an order for the stay of execution of the default judgment granted by this court in case number HC4599/21 in December 2022, pending the application for rescission of the default judgment filed in case number HCH6399/25. In particular, the Applicant is praying for the following relief:

> "2. (sic) The application be and is hereby granted.
> 3. Execution of the High Court's judgment under HC4599/21 dated 12 December 20221 (sic) be and is hereby stayed pending the determination of the application under HCH6399/52 (sic).
> 4. The 1st and 2nd respondents shall pay the applicant's costs of suit."

In brief, the Applicant filed the matter in case number HC4599/21 seeking an order for the cancellation of the agreement of sale of the immovable property being Stand Number 3473 Warbury Road, Mabelreign, Harare (hereinafter called "the property". The agreement was concluded between the Applicant, on one hand, together with the 1st and 2nd Respondents, on the other hand. The Matter in case number HC4599/21 was converted into an action procedure by

this court. The 1st and 2nd Respondents filed the plea and the counterclaim against the Applicant's declaration.

The 1st and 2nd Respondents obtained a default judgment against the Applicant in case number HCH4599/21 following the Applicant's failure to plead to the counterclaim. The default judgment is as follows:

> "1 The respondent be and is hereby ordered to transfer a property known as Stand Number 3473 Warbury Road, Malbereign, Harare, measuring 1238 square metres, into the name of the 1st and 2nd applicants within thirty (30) days from the date of this order.
> 2. Upon failure of the respondent to effect transfer as per this order, the Sheriff of the High Court be and is hereby authorized and directed to sign all papers necessary to facilitate the transfer of the property to the 1st and 2nd applicants.
> 3. The respondent be and are (sic) hereby ordered to pay costs of suit at an attorney-client scale."

The Applicant alleged that it was not aware of the default judgment at the material time. The Applicant consequently filed an application for rescission of the default judgment in case number HCH679/23 in February 2023. Following the Applicant's failure to prosecute the matter in case number HCH679/23, the 1st and 2nd Respondents, in case number HCH5705/23, applied for dismissal of the matter filed by the Applicant in case number HCH679/23.

Upon being served with the application for dismissal in case number HCH5705/23, the Applicant failed to timeously file opposing papers. Consequently, a default judgment was granted against the Applicant on the day of the hearing.

The Applicant unsuccessfully appealed against the default judgment granted by this court in case number HCH5705/23. According to the Applicant, the Supreme Court held that the Applicant's appeal was defective as a default judgment is not appealable.

The Applicant was forced to apply, in case number HCH4994/24, for condonation for the late filing of the application for rescission of the default judgment granted in case number HCH5705/23. The application for condonation was granted by this court on 5 December 2025. The Applicant subsequently filed an application for rescission of default judgment under case number HCH6399/25, seeking to set aside the default judgment in case number HCH5705/23. The application is still pending before this court.

Pending the application for rescission of default judgment in case number HCH6399/25, the Applicant is now seeking the present relief. It was averred by the Applicant that on 28

January 2026, it discovered, through its legal practitioners, that the 1st and 2nd Respondents were now applying for a rates clearance certificate from the City of Harare.

The matter was opposed by the 1st and 2nd Respondents (hereinafter called "the Respondents"). The Respondents raised five points *in limine* against the present application. Firstly, they argued that the matter is not urgent. By way of the second point *in limine*, the Respondents affirmed that the certificate of urgency is invalid owing to several irregularities. Thirdly, the Respondents asserted that the relief sought by the Applicant is incompetent. In their fourth point *in limine*, the Respondents claimed that the Applicant is approaching this court with dirty hands, having failed to settle costs arising from many orders of this court and the Supreme Court. In their last point *in limine*, the Respondents maintained that the Applicant must furnish them with security of costs following the Applicant's alleged failure to settle previous costs.

I will now move to deal with the points *in limine*. The Respondents averred that the Applicant ought to have taken steps in 2022 when the default judgment was granted. Mr. Kuchena submitted that the need to act arose in December 2022 when this court granted default judgment. He further submitted that the Applicant ought to have acted at that period. Mr. Kuchena argued that the Applicant's failure to approach this court for a remedy in 2022 on an urgent basis reflects that the Applicant was not treating this matter urgently. The delay, according to Mr. Kuchena, is inordinate. Mr. Kuchena further submitted that the 3rd Respondent executed the judgment in case number HC4599/25 in March 2025 when the 3rd Respondent attached some goods before issuing a *nulla borna* return of service when the 3rd Respondent was not able to find goods that would satisfy the costs taxed in case number HC4599/21.Mr. *Kuchena* contended that the Applicant ought to have taken some steps upon the issuance of the writ of execution in February 2025. He also claimed that the transfer documents have already been signed and the draft deed for the property is now ready for further action. In light of this, Mr. *Kuchena* insisted that the Applicant ignored all these steps for the execution of the judgment, only to come to the court in 2026.

Adv *Mutero*, responding to urgency, argued that urgency was overtaken by events. He argued that the Respondents ought to have raised this issue of urgency at the case management meeting. He maintained that the Respondents lost this right by failing to raise this at the material

time. No authority was advanced in this regard. Adv *Mutero* alternatively insisted that the need to act arose on 28 January 2026 when the Applicant discovered that the Respondents were trying to get the rates clearance certificate for purposes of transfer of the property. According to Adv *Mutero*, the Applicant never imagined that the Respondents would take steps to have the property transferred, given that there are cases that are pending where the property is at the Centre of such cases.

What remains to be determined is whether the present application is urgent as contemplated by the Applicant. It is alleged that the Applicant discovered that the Respondents' legal practitioners were trying to apply for the rates clearance certificate at the City of Harare office. This discovery was made by an employee of the Applicant's legal practitioners, according to the Applicant. There is no supporting affidavit from the employee concerned. The allegation, in my view, remains hearsay evidence in the absence of the supporting affidavit from the person who had eye witness account of the events. What makes the supporting affidavit more pertinent is that the Applicant seeks to rely on the events of 28 January 2026 as the date upon which the need to act arose.

In the absence of the supporting affidavit, I am unable to believe Applicant's version of events to this end. In my view, this date has only been mentioned as an attempt to create urgency. Litigants must not approach the court based on self-created urgency. Reference is made to the case of *Econet Wireless (Pvt) Ltd* v *Trustco Mobile (Pty) Ltd and Anor*[1], where GARWE Ja, as he then was, in defining urgency, held that:

> *"*In deciding to hear the matter on the basis of urgency, the court a quo considered a number of factors. It considered the fact that the respondents, who are Namibian-based Companies, had had to brief their lawyers on the highly technical aspects of the Trustco mobile system, that the services of a South African advocate experienced in intellectual property-related issues had to be sought, that there was need to obtain advice across three jurisdictions and in particular on the procedural and substantive issues applicable to the law in Zimbabwe, that thereafter trips had to be undertaken by the first respondents' managing director and a South African lawyer to Zimbabwe to consult with Zimbabwean-based lawyers. The court a quo was of the view that the explanation given for the delay was not only reasonable but was also understandable. The court further found that the matter was urgent.

[1] SC43/13.

> It is clear that in terms of Rules 244 and 246 of the High Court Rules, the decision whether to hear an application on the basis of urgency is that of a judge. The decision is one, therefore, that involves the exercise of discretion. It follows from this that this Court has very limited grounds upon which it can interfere with the exercise of such a discretion. Various decisions of this Court have stressed the point that unless the inferior court makes a mistake on the law or the facts, acts upon a wrong principle, allows extraneous considerations to influence its decision, fails to take into account relevant facts or more generally makes a decision that is irrational, an appellate court would have no basis for interfering with the exercise of discretion in such a situation.
> The position is now settled that what constitutes urgency is not only the imminent arrival of the day of reckoning, but also, if at the time the need to act arises, the matter cannot wait. Urgency which stems from a deliberate or careless abstention from action until the deadline draws near is not the type of urgency contemplated by the Rules."

Whether or not the matter is urgent is the issue that has been clarified by our jurisprudence in a number of decisions. The certificate of urgency and supporting affidavit must explain any failure by the Applicant to act timeously. In the case of *Kuvarega* v *Registrar General and Anor*[2] Urgency was extensively defined in the following way:

> "What constitutes urgency is not only the imminent arrival of the day of reckoning. A matter is urgent if, at the time the need to act arises, the matter cannot wait. Urgency, which stems from a deliberate or careless abstention from action until the deadline draws near, is not the type of urgency contemplated by the rules. It necessarily follows that the certificate of urgency or the supporting affidavit must always contain an explanation of the non-timeous action if there has been any delay."

In *casu*, the Applicant failed to explain what it had been doing since 2022 after the granting of default judgment in case number HCH4599/21 to date. Further, in the case of the *Seventh Day Adventist Association of Southern Africa* v *Tshuma*[3], The court held that:

> "It is only in exceptional circumstances that a party should be allowed to jump the queue on the roll and have its matter heard on an urgent basis……. An urgent application amounts to an extraordinary remedy where a party seeks to gain an advantage on other litigants by jumping the queue, and has its matter given preference over other pending matters…"

In addition, the nature of relief and cause of action is very key in determining whether or not the matter is urgent, as enunciated in the case of *Document Support Centre (Pvt) Ltd* v

[2] 1998 (1) ZLR 188 (H).
[3] HB213-20.

Mapuvire[4]. MAKARAU J. (as she then was), in making her determination in the case of Document Support Centre (Pvt) Ltd supra, held that:

> "Without attempting to classify the causes of action that are incapable of redress by way of urgent application, it appears to me that the nature of the cause of action and the relief sought are important considerations in granting or denying urgent applications."

In the case of Gwarada v *Johnson and Ors*[5] The Court held:

> that time is of the essence in that the applicant must exhibit urgency in the manner in which he has reacted to the event or the threats. See also the case of Mukwindiza v Sithole and Anor[6].

The Applicant waited for the deadline in order to author its own version of urgency. It was alleged that the Applicant failed to replicate to the counterclaim in case number HCH4599/21. This allegation was not resisted by the Applicant in the answering affidavit. The Applicant's failure to replicate to the counterclaim saw the Respondents obtaining default judgment against the Applicant. As if this was not enough, the Applicant failed to prosecute its own application for rescission of the default judgment filed in case number HCH679/23. Thirdly, the Applicant, having been served with the application for dismissal of the application for want of prosecution in case number HCH5705/23, the Applicant filed the opposing papers out of time. The Applicant also ignored regularizing its opposing papers in case number HCH5705/23, which saw a default judgment being granted in favour of the Respondents. Instead of applying for rescission of the default judgment against the order in case number HCH5705/23, the Applicant chose to appeal against the default judgment. The series of events, in my view demonstrate that the Applicant did not want to promptly prosecute its matters. The Applicant has been exhibiting a lethargic attitude towards finalizing this matter. Such a lackadaisical approach is not the kind of behavior expected under such circumstances.

[4] 2006 (2) ZLR 240
[5] 2009 (2) ZLR 159.
[6] HMT 21-21.

In my view, once the Respondents obtained the default judgment in 2022, the Applicant ought to have taken measures with a high degree of rapidity in order to arrest the situation. The Applicant was not supposed to wait for the last step of execution in order to start approaching the court on an urgent basis.

Further, it is not disputed that the 3rd Respondent once executed judgment through the attachment of some of the property in 2025. By March 2025, the Applicant was aware that the Respondents were willing to execute the judgment. If the Applicant had failed to take action by December 2022, when default judgment in case number HC4599/21 was granted, by March 2025, a clear signal for the execution of judgment was given by the Respondents when they caused the issuance of the writ. Again, at this stage, the Applicant took no action. Mr. Kuchena submitted that the 3rd Respondent started processing transfer documents for the property in July 2025. He further submitted that the draft deed of transfer is now ready for finalization. He also contended that the Applicant ought to have arrested the situation, but failed at this stage. Adv Mutero argued that the issue of the draft deed of transfer was never mentioned in the opposing affidavit. He additionally maintained that the counsel was now attempting to give evidence over the bar.

Acting upon the authority of *Mhungu* v *Mutindi*[7]I proceeded to examine the matter in case number HCH4599/21. This authority empowers the court to refer to its own records. I discovered that the transfer documents have been signed, including the declaration by the seller, the declaration by the purchaser, and the power of attorney. The draft deed of transfer was also finalized.

In light of this, it remains a mystery why the Applicant chose to be inactive at these critical stages. Upon its failure to take intervening measures at the previous critical stages, the Applicant does bear the onus of justifying to this court what had become so urgent in 2026, which was not urgent in 2022 when a default judgment was granted in favour of the Respondents.

[7] 1986 (2) ZLR 171 (S).

For the aforesaid reasons, I am of the view that the Applicant failed to act with such a high scale of promptitude reasonably expected under such state of affairs. The Applicant failed to harness the situation, not only once, not twice, but on several occasions. Such multiple acts of negligence will leave me with no option except to reach a conclusion that the Applicant does not deserve to be heard on an urgent basis. The Applicant does not deserve to jump the queue ahead of other litigants. Adv Mutero submitted that the question of urgency was overtaken by case management meeting. It is apparent that there was no case law advanced by the counsel on this aspect. In my view, the urgent court application procedure does not provide for a procedure where the Respondents are expected to argue the question of urgency at the case management meeting. The Rules are silent on this aspect. Where it has been raised by the Respondents on the actual hearing day, the court is obliged to make a determination on such a question. In the premises, the matter must be struck from the urgent roll.

I have no reason to deal with the rest of the points *in* limine, having reached a conclusion that the matter is not urgent. Dealing with the rest of the points *in* limine can only be a futile academic exercise. On costs, the Applicant must bear costs on an ordinary scale for mounting the matter which is not urgent. Such costs are reasonably sufficient. In the circumstances, it is ordered as follows:

The application be and is hereby struck from the urgent roll with costs.

DEME J. ……

Gijima Gashirayi Gatawa Attorneys, the applicant's legal practitioners
L.T. Muringani Law Practice, 1st & 2nd respondents' legal practitioners